

HOUSE No. 5296

The Commonwealth of Massachusetts

PRESENTED BY:

Michelle L. Badger and Kathleen R. LaNatra

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to early intervention services for children with prenatal exposure to opioids.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>1/5/2026</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>1/27/2026</i>

HOUSE No. 5296

By Representatives Badger of Plymouth and LaNatra of Kingston, a petition (subject to Joint Rule 12) of Michelle L. Badger relative to early intervention services for children with prenatal exposure to opioids. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to early intervention services for children with prenatal exposure to opioids.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1 of Chapter 111G of the General Laws, as so appearing, is hereby amended by
2 inserting at the end thereof the following definitions:-

3 "Substance-Exposed Newborn", a newborn who was exposed to alcohol or other drugs
4 ingested by the mother in utero, whether or not this exposure is detected at birth through a drug
5 screen or withdrawal symptoms.

6 "Neonatal Abstinence Syndrome", symptoms and signs exhibited by a newborn due to
7 drug withdrawal, the term used to represent the pattern of effects that are associated with opioid
8 withdrawal in newborns.

9 Section 2 of Chapter 111G of the General Laws, as so appearing, is hereby amended by
10 inserting at the end thereof the following paragraph:-

11 The department shall review and revise the early intervention operational standards to
12 ensure that children under the age of 3, who are diagnosed with Neonatal Abstinence Syndrome
13 and children under the age of 3, who meet the definition of substance-exposed newborns, are
14 deemed categorically eligible for early intervention services until the child's third birthday.